

Lord Falconer, Baroness Hughes, Lord Knight, Lord Lemos (all mentioned it in debate)

1. Clarifying the definition of “harm” to “persons” (Clause 12)

PROBLEM:

After Hillsborough, the police lied to protect their own reputations and blamed the victims. Clause 12's Misleading the Public offence exists to stop that happening again. It includes a "harm" ingredient:

"caused, or contributed to causing, harm to one or more other persons, or had the potential to do so"

"'harm' includes physical harm, psychological harm (including distress) and economic loss"

That ingredient is already very broad due to "potential" and "includes". Our concern is that the most important harm and victims are not mentioned, which prevents the main aim of the offence from being as clear as it needs to be.

The difficulty lies in the words "one or more other persons". Under the Interpretation Act 1978, this would include individual, or groups of, people, corporate and unincorporated bodies, such as companies, local authorities and associations. But that does not establish that the concept of the general public at large qualifies as one such person or persons.

As Lord Knight put it in February, misleading the public "corrodes the foundations of confidence on which democratic governance rests".

This amendment adds that harm to the general public to the list. It names the harm that matters most: when the people the public elects, funds and relies on lie to it, what is most harmed is the general public's trust in its own institutions.

Amendment

Clause 12, page 13, line 17, leave out paragraph (b) and insert—

“(b) either—

(i) caused, or contributed to causing, harm to one or more other persons, or had the potential to do so, or

(ii) caused, or contributed to causing, the undermining of public confidence in the integrity of a public authority or public official, or in the exercise of public functions in general, or had the potential to do so,

and”

Explanatory statement

This amendment expands the consequence required for the clause 12 offence to include actual or potential undermining of general public confidence in the integrity of a public authority or public official, or in the exercise of public functions generally. It leaves unchanged the existing limb concerning harm to other persons. (49 words)

2. Safeguarding and rewarding early candour for Part 2 Offences (Schedule 3)

PROBLEM:

As Lord Arbutnot said at second reading: "I am not convinced the Bill does reward openness. It attempts to punish deceitfulness, but that is a different thing." Both must be achieved to fulfil the cultural change intended.

This amendment also adds other safeguarding defences in Schedule 3 in response to several other concerns raised. Lord Sahota: "nobody should face imprisonment merely for making an honest mistake." Lord Anderson quoted the impact assessment: "honest mistakes or finely balanced operational decisions should not be caught by this offence." Lord Wolfson: "the Bill does not define 'recklessness'." Baroness Cavendish: "reckless" and "misleading" "have quite broad definitions." Lord Sandhurst: "Parliament should be very cautious lest any words spoken on the Floors of either House, or in its committees, are put at risk of being caught by criminal offences or civil actions".

This amendment defines subjective recklessness in the terms the courts already use, so the threshold is fixed and known, protects genuine freedom of expression and good faith predictions, preserves parliamentary privilege, and protects only necessary and proportionate state deception for tightly defined public interests.

Officials who tell the truth and co-operate early should not be prosecutable under this Bill. Officials who lie, conceal and cover up should face it in full.

AMENDMENT

Schedule 3, page 54, line 20, at beginning insert—

“Defences and safeguards

A1 (1) It is a defence for a person charged with an offence under section 5 or 12 to show that any of the conditions in sub-paragraphs (2) and (5) to (8) is met. The conditions in sub-paragraphs (5) to (7) apply only where the person did not intend to mislead the public or impede an inquiry or investigation and was not reckless as to whether the act would do so.

Early candour

(2) The person voluntarily and as soon as reasonably practicable after the act—

- (a) lawfully disclosed all known material facts and preserved and provided available evidence to an independent authority competent to investigate;
- (b) corrected misleading public accounts with comparable prominence; and
- (c) complied thereafter with section 2.

Disclosure must precede actual or reasonably anticipated exposure and any intended or consciously risked practical outcome.

Defence for the original mistake

(2A) It is a defence for an individual charged with an offence other than one under section 5 or 12 to show that the act constituting the offence was an honest mistake in performing public functions or discharging a relevant public responsibility within section 4, involved neither recklessness nor gross negligence, and was voluntarily and promptly disclosed under sub-paragraph (2)(a). The first sentence of sub-paragraph (10) applies to this defence.

Employment protection

(2B) An employer or appointing authority must not penalise anyone for disclosure under sub-paragraph (2)(a) or conduct within sub-paragraph (2) or (2A). Such dismissal or removal is void and actionable. Reasonable retraining may be required.

Award for early candour

(2C) The Secretary of State must establish independently assessed awards open to anyone, including journalists, public officials and members of the public, for lawful disclosures exposing serious wrongdoing before any relevant inquiry, inquest or prosecution begins, whether or not such proceedings subsequently take place. Anyone whose intentional, reckless or grossly negligent misconduct contributed to the wrongdoing is ineligible.

Parliamentary privilege

(3) No proceedings for an offence under section 5 or 12 may be brought or continued in respect of anything said or done in proceedings in Parliament to which the protection of Article 9 of the Bill of Rights 1688 applies.

Immunity for devolved parliamentary proceedings

(4) No proceedings for an offence under section 5 or 12 may be brought or continued in respect of anything said or done in proceedings of the Scottish Parliament, Senedd Cymru or the Northern Ireland Assembly.

Honest beliefs, freedom of expression and error

(5) The act consisted solely of an honest mistake, an honestly held belief or assessment, or an honestly made prediction or promise which proved wrong or was not fulfilled. Nothing in sections 5 or 12 overrides the right to freedom of expression, including political expression, protected by Article 10 of the Convention, within the meaning of the Human Rights Act 1998.

Fair warning

(6) The person fairly warned those addressed, in good faith and at the time, of material uncertainty or incompleteness in the information provided.

Emergency action

(7) The act resulted solely from reasonable reliance in good faith on incomplete or changing information when responding to an emergency or urgent operational situation, and the person corrected any resulting inaccuracy or omission as soon as reasonably practicable after becoming aware of it.

Necessary state deception

(8) The act was necessary and proportionate to protect national security, life or public safety, or avert serious and imminent harm to United Kingdom economic or financial stability, and no reasonably available less misleading or obstructive means would suffice. These requirements also apply to a defence under section 12(6)(a), or under section 12(6)(b) based on those interests.

Unintentional oversight distinguished from recklessness

(9) For sections 5 and 12, a person is reckless as to a result only if the person was aware of a risk that the act would bring about that result and, in the circumstances known to the person, it was unreasonable to take that risk. Proof that the person ought to have been aware of the risk is not sufficient.

Burden of proof

(10) A person is taken to have shown a matter relied on for a defence under sub-paragraph (1) if sufficient evidence is adduced to raise it and the contrary is not proved beyond reasonable doubt. This rule also applies instead of the requirement to prove the defence under section 12(6)(a).

Individual responsibility

(11) A defence available to a body under this paragraph does not, by itself, provide a defence for an individual. The conditions of any defence relied on by the individual must be met in relation to that individual. In determining an individual's liability under paragraph 3, disregard any defence available to the body under this paragraph."

Explanatory Statement:

This amendment rewards early candour and honest disclosure alongside the Bill's penalties for dishonesty. It preserves parliamentary privilege and freedom of expression, defines recklessness, and provides defences and safeguards for honest mistakes and other conduct that should not attract criminal liability. (41 words)

3. Defining “Matters of Significant Concern to the Public” (Clause 12)

PROBLEM

Clause 12 is intended to make public authorities and officials criminally accountable for reckless or intentional deceit on “matters of significant concern to the public”. Yet it doesn’t define this ingredient anywhere in the Bill. As stated by Lord Anderson of Ipswich (CB), 1 Sept. “Laws need to be clear on the face of the statute book, particularly when they fall to be applied by juries.”

The public, press and Parliament need a clear distinction of what acts can and cannot be considered to reach the criminal level of deception.

A lie about a purely private extramarital relationship may attract headlines; a lie about hospital safety may receive comparatively little attention before disaster strikes. This amendment ties significance to the public interests at stake.

AMENDMENT

HL Bill 42 (59/2), as brought from the Commons on 16 July 2026.

Clause 12, page 13, line 20, at end insert—

“(3A) In subsection (3)(a), “matters of significant concern to the public” means matters which a reasonable person, having regard to their nature, seriousness and scale, would consider capable of materially affecting—

- (a) the exercise of public functions or powers;
 - (b) the use of public money, assets or resources;
 - (c) public health or safety, the environment, the public’s economic interests, national security or the administration of justice;
 - (d) the integrity or reputation of public authorities or officials in relation to their public functions, or public trust in those functions; or
 - (e) public policy, democratic decisions or the conduct or outcome of ongoing democratic processes.
- (3B) A matter does not qualify merely because it concerns a person’s private life or attracts public attention.”

EXPLANATORY STATEMENT

The offence of misleading the public in clause 12 requires dishonesty concerning “matters of significant concern to the public”, which the Bill leaves undefined. This amendment defines that requirement by reference to material effects on specified public interests. Private life or public attention alone is insufficient.

4. Defining “In Their Capacity as Such an Authority or Official” (Clause 12)

PROBLEM

Clause 12’s offence of misleading the public requires an authority or official to act “in their capacity as such an authority or official”, but does not define that requirement. This is a serious obstacle to enforcement: uncertainty over this essential ingredient can waste enormous amounts of time and public money in court.

A government minister may use their official title, departmental information, publicly funded staff and privileged access to secure a prime-time interview, then brazenly deceive the public about public duties, powers or resources. They must not be able to avoid accountability simply by later describing their conduct as purely private, personal or political. Such labels do not erase the official advantages used to deliver the deception.

Parliament must settle this boundary clearly. Otherwise, substantial court time and public money risk being consumed by arguments over capacity, obstructing the very accountability this offence is intended to deliver.

This amendment connects capacity to public functions and the use of official advantages. It prevents private-capacity disclaimers from overriding that connection, while expressly protecting wholly unconnected private life, personal relationships and business dealings.

AMENDMENT

HL Bill 42 (59/2), as brought from the Commons on 16 July 2026.

Clause 12, page 13, line 8, at end insert—

“(1A) For the purposes of this section, an act is done by a public authority or public official in their capacity as such if—

- (a) it is substantially connected with the exercise or purported exercise of public functions, or
- (b) in doing it, the person uses, relies on, invokes or obtains a material advantage from any status, title, authority, information, access, power or resource arising, or purportedly arising, from the person’s public functions or position.

This subsection applies despite paragraphs 2(3) and 3(2) of Schedule 2.

(1B) Official status or title, and access to an audience by reason of that status or title, are powers or resources for the purposes of subsection (1A)(b).

(1C) An act is not outside subsection (1A) merely because it is political, electoral, campaigning, party-political or personal, is described as private or personal, or is done outside working time, official premises or an official event.

(1D) An act wholly within a person’s private or personal life, including personal relationships or private business dealings, is not done in that capacity if neither condition in subsection (1A) is met.”

EXPLANATORY STATEMENT

This amendment reduces scope for costly disputes over official capacity under the clause 12 offence of misleading the public. It defines capacity by connections with public functions or use of official advantages, despite political or personal labels, while excluding wholly private conduct unconnected with either.

5. Renaming the Misleading the Public offence (Clause 12)

PROBLEM

The name “misleading the public” risks confusing people about what clause 12 criminalises. In ordinary language, someone can mislead through an honest mistake. This could encourage inappropriate reports, create false expectations and undermine public confidence when prosecutions do not follow.

“Misleading the public” is also familiar language in journalism and political debate, used without necessarily alleging deliberate dishonesty or criminal conduct. Giving a criminal offence that same name risks blurring the distinction between ordinary criticism and a criminal allegation. Readers could understand “accused of misleading the public” as referring to the statutory offence when the journalist intended no such allegation. Although context would remain decisive, this ambiguity could create avoidable reputational harm and disputes over reporting.

“Deceiving the public” would not resolve the problem: it suggests that the public must actually have been deceived. Clause 12 requires significant or repeated dishonesty and intention or recklessness as to misleading the public, alongside its other conditions. It rightly does not require proof that anyone believed the dishonest account or the attempt is enough.

“Official dishonesty” identifies both the dishonest conduct and the public authorities and officials to whom the offence applies. “Dishonesty” can describe both reckless and intention deceit which is what this offence targets.

These amendments give the offence its new name in clause 12 and update clause 1 and the Long Title. Corresponding changes to the existing chapter and clause headings would be made editorially as they cannot be the target of amendments.

AMENDMENTS

HL Bill 42 (59/2), as brought from the Commons on 16 July 2026.

Linked amendment 5A

Clause 1, page 2, line 1, leave out paragraph (c) and insert—

“(c) imposing criminal liability on public authorities and public officials for seriously improper official dishonesty (Chapter 3 of Part 2);”

EXPLANATORY STATEMENT

The title of “Misleading the Public” does not accurately reflect what the offence targets. This amendment updates clause 1’s description of the clause 12 offence to “official dishonesty”. The new name distinguishes the offence from everyday accusations and accidental error, without implying that anyone must actually have been misled. (49 words)

Linked amendment 5B

Clause 12, page 13, line 4, leave out “an offence” and insert “the offence of official dishonesty”

EXPLANATORY STATEMENT

The title of “Misleading the Public” does not accurately reflect what the offence targets. This amendment gives the clause 12 offence the statutory name “official dishonesty”. The new name distinguishes the offence from everyday accusations and accidental error, without implying that anyone must actually have been misled. (47 words)

Linked amendment 5C

Clause 12, page 13, line 6, leave out “misleading” and insert “deceiving”

EXPLANATORY STATEMENT

The word “misleading” can describe accidental error, obscuring the dishonest conduct targeted by clause 12. This amendment substitutes “deceiving” in its intention-or-recklessness requirement, alongside renaming the offence “official dishonesty”. It retains recklessness and does not require proof that anyone was actually deceived. (42 words)

Linked amendment 5D

Title, line 5, leave out from “offence” to “to” in line 6 and insert “of official dishonesty by public authorities and public officials;”

EXPLANATORY STATEMENT

The title of “Misleading the Public” does not accurately reflect what the offence targets. This amendment updates the Long Title to describe clause 12’s offence as “official dishonesty”. The new name distinguishes the offence from everyday accusations and accidental error, without implying that anyone must actually have been misled. (49 words)

6. Removing the Hillsborough Law carve-out for judges and coroners

PROBLEM

Under the proposed Hillsborough Law, the police, investigators and nearly every other public authority giving evidence to an inquest or inquiry must be candid. But Schedule 2 says a person is not to be regarded as a public official “solely by virtue of acting in a judicial capacity or acting on the instructions of, or on behalf of, an individual acting in a judicial capacity”.

We previously argued that this could also exclude police officers working for a coroner. After meeting the Government, we accept that it does not. Police officers who work for coroners, including as coroner’s officers, are public officials in their own right as police officers, so the words “solely by virtue of” mean they stay covered.

That leaves the real problem: the judges and coroners themselves.

The judge or coroner running an inquest or inquiry, the person who controls its scope, the evidence and the final ruling, is not required to be candid at all. That gives them too much power over everyone else in the room. A coroner who is free to deceive can undermine the whole inquest or inquiry.

Judicial reviews do exist for those who want to challenge a coroner’s decision, but they must be brought within three months of the decision, and it can often take years to uncover evidence that someone has lied in these kinds of circumstances. A coroner could deliberately or recklessly deceive the public in reaching a ruling, in a way that a judicial review could never address.

The problem goes further than inquests. Judges will be the people who try cases under this new law. They cannot be almost the only officials in the country who do not have to abide by it. A law that holds every other public official to honesty, while exempting the judges who enforce it, risks enormous damage to public trust in our courts, in the judiciary and in judges themselves. Our justice system will not benefit from judges being seen by the public as hypocrites.

These amendments bring judges, coroners and inquiry leaders, and the public staff who support them, within the same candour requirements as everyone else. Where a leader’s own conduct is in question, they provide an independent recipient, so that no judge or coroner can control disclosure about themselves.

AMENDMENTS

HL Bill 42 (59/2), as brought from the Commons on 16 July 2026.

Linked amendment 6A — Inclusion

Schedule 2, page 51, line 28, at end insert—

“(2A) An individual is also a public official to the extent that the individual—

- (a) acts in a judicial capacity, including as a judge, justice of the peace or coroner,
- (b) leads an inquiry or investigation to which any of Parts 1 to 6 of Schedule 1 applies, or
- (c) exercises public functions directly supporting a person acting as mentioned in paragraph (a) or (b).

An individual is not included under this sub-paragraph solely by acting as a juror, witness, party, participant, or legal representative or expert instructed by a party or participant.”

EXPLANATORY STATEMENT

The Bill’s judicial exclusion can leave those running inquests outside its candour requirements. Alongside its removal, this amendment includes judges, coroners, inquiry and investigation leaders and public support staff as public officials for the duty of candour and assistance and the offence of misleading the public. (46 words)

Linked amendment 6B — Removal of the judicial exclusion

Schedule 2, page 52, line 12, leave out paragraph (a)

EXPLANATORY STATEMENT — AMENDMENT 6B

The Bill’s judicial exclusion can exempt those directing and supporting inquests and inquiries from candour requirements applying to other officials. This amendment removes that exclusion from the public-official definition governing the duty of candour and assistance and the offence of misleading the public.

Linked amendment 6C — Independent recipient

After Clause 3, insert the following new Clause—

“Independent recipient where leader’s conduct is in issue

(1) Where a public official leading an inquiry or investigation has grounds to believe that their own conduct, including compliance with the duty of candour and assistance, is or may be in issue, section 2(3) requires them instead to apply as soon as reasonably practicable to the appropriate court for appointment of an independent recipient; neither section 3(2) nor paragraph 4(3) of Schedule 1 applies to that obligation.

(2) The court must appoint a suitably qualified judge who is independent of anyone materially implicated and lawfully entitled to receive the information concerned, and may replace that judge.

(3) On appointment, the leader’s obligation under section 2(4) concerning that conduct applies without a direction under section 3(4), and assistance must be provided to the recipient. In relation to that obligation, the recipient exercises the leader’s functions under sections 2(4)(e) and 3(5) in place of the leader. The recipient may apply to the appropriate court for an order requiring compliance with that obligation or any requirement imposed under it; the court may make such an order.

(4) Sections 3(7) and 6 apply as if information provided to the recipient were provided to the inquiry or investigation. The restrictions applying by virtue of Schedule 1 to the persons from whom, and the matters in respect of which, assistance may be required for the inquiry or investigation also apply under subsection (3). Nothing in this section overrides any applicable rule of privilege or confidentiality of judicial deliberations.

(5) The recipient must preserve the material received and take reasonable lawful steps to place relevant material before the inquiry or investigation and refer evidence of offences to a competent investigating or prosecuting authority.

(6) A statement or admission made in the application or in compliance with this section is inadmissible against its maker in criminal proceedings, except proceedings for an offence committed in making it. This does not affect the admissibility of pre-existing documents or independently obtained evidence.

(7) In this section, ‘the appropriate court’ means—

- (a) the Court of Session, where the inquiry or investigation is conducted wholly or mainly in Scotland,
- (b) the High Court in Northern Ireland, where it is conducted wholly or mainly in Northern Ireland, or
- (c) the High Court in England and Wales in any other case.”

EXPLANATORY STATEMENT — AMENDMENT 6C

The Bill directs candour disclosures to the inquiry or investigation leader, creating a conflict where their own conduct is in issue. This amendment provides an independent judge appointed by a court to receive disclosures and require assistance, preserving enforcement, safeguards and limits on using compelled statements in criminal proceedings.

7. Removing the Hillsborough Law carve out for Legislators

PROBLEM

It is widely believed by members of the House of Lords that under the current wording of the bill they are not included under the duty of candour or the Misleading the Public offence. This may be incorrect.

Schedule 2, paragraph 2(4)(b), excludes “either House of Parliament” as a public authority. It does not expressly exclude individual members as public officials. Paragraph 3(1)(c) separately includes someone who “holds a relevant public office”.

Crucially, paragraph 3(4) concerns an office that “is not a public authority” but is established by Crown prerogative or enactment. Paragraph 3(5) adds conditions concerning Crown or other specified appointments. The Crown appoints life peerages under statutory powers and the House of Lords itself is established by enactment. Excluding the House therefore does not settle its members’ individual status.

Paragraph 3(3)(b) requires the individual to exercise “functions of a public nature”. This is directly relevant to paragraph 3(6), which excludes qualification “solely by virtue of” holding an “honour or dignity” conferred by the Crown. A peer exercising legislative powers has public functions beyond possessing a title because they have “functions of a public nature” as legislators.

In short, under the current wording of the bill, members of the House of Lords appear to be prosecutable for both Part 2 offences. But it is likely that the current wording would result in a costly and time-consuming argument in court before a final decision was made. This needs to be avoided.

Apart from Peers, all other UK legislators do currently enjoy a carve out from the Hillsborough Law and this will be extremely damaging when press and public understand what this means.

Imagine an inquiry seeking equally important evidence from a police officer and a backbench MP. The officer could face prosecution for deliberately withholding evidence to obstruct the inquiry, in breach of their Duty of Candour. The MP wouldn’t have any such duty and everyone present would be informed of that. Bereaved families would have a specific legal reason not to trust their own elected representatives.

Ministers are expressly covered through ministerial office; shadow ministers and backbench MPs are not covered at all. Meaning that the opposition across London, Cardiff, Edinburgh, and Belfast’s elected parliaments would not be required to be honest with the public, whereas the government would be. This would completely unbalance our democratic system and discourage the public from ever having any reason to trust the opposition.

Parliament cannot credibly demand candour from nearly all other public officials while giving themselves a carve out. It would rightly invite damaging charges of hypocrisy. Such a double standard would undermine the Hillsborough Law’s promise that institutions must help families uncover the truth. Parliament should resolve these gaps now and lead by example.

This Bill seeks to change the culture of cover-up, lying and manipulation in public life. Election campaigns are a crucial test of that ambition: former legislators seeking re-election and new candidates ask voters to trust them with power. It would be a glaring contradiction to demand honesty from people once they hold office while leaving a gap in accountability for serious dishonesty used to obtain it. Formally nominated legislative candidates should therefore be covered by the offence of misleading the public during their campaigns, subject to the same criminal thresholds as those already in office.

This amendment expressly includes all members of all four UK legislatures under both provisions and formally nominated legislative candidates under clause 12.

Due to the Bill of Rights and parliamentary privilege, these offences cannot be used against anything said or done in proceedings in Parliament. They would only cover acts outside of Parliamentary business.

AMENDMENT

HL Bill 42 (59/2), as brought from the Commons on 16 July 2026.

Schedule 2, page 51, line 26, at end insert—

“(1A) An individual is also a public official if they are a member of either House of Parliament, the Scottish Parliament, Senedd Cymru or the Northern Ireland Assembly.

(1B) For the purposes of section 12, a nominated candidate is to be treated as a public official, and activity they undertake to procure their election is to be treated as their functions and as done in that capacity. Sub-paragraph (13) does not apply to status arising solely under this sub-paragraph.

(1C) In sub-paragraph (1B), ‘nominated candidate’ means a person named as standing nominated, individually or on a party list, for election to a legislature mentioned in sub-paragraph (1A), in a statement of persons nominated or equivalent statutory notice published by the returning officer, from publication until the person ceases validly to stand or the result is declared.”

EXPLANATORY STATEMENT

This amendment removes exclusions affecting legislators by expressly including peers and elected members under the duty of candour and assistance and offence of misleading the public, and legislative candidates under the latter. Privilege prevents prosecution over protected parliamentary proceedings; television, radio and other public statements outside proceedings can be covered. (50 words)